

APPENDIX INDEX

Worldwide Nexus Logistics LLC v. Wallenius Wilhelmsen Ocean AS

Federal Maritime Commission – Docket No. 25-15

The following appendix identifies the evidentiary record cited in Complainant's Brief and Proposed Findings of Fact in this proceeding.

Appendix A – Index of Complainant Production (WNL-0001 – WNL-0073)

WNL-0001 – WNL-0006

Shipment documentation – Andy of Miami USSAV2348017 (booking request, booking confirmation, shipping instructions, house bill of lading, invoice, payment confirmation).

WNL-0007 – WNL-0012

Shipment documentation – Cargoland USSAV2348173 (booking request, booking confirmation, shipping instructions, house bill of lading, invoice, payment confirmation).

WNL-0013 – WNL-0017

Shipment documentation – Cargoland USSAV2351444 (booking statements, shipping instructions, house bill of lading, invoice).

WNL-0018 – WNL-0022

Carrier booking documentation – Andy of Miami USSAV2348017 (booking request, booking confirmation, shipping instructions, master bill of lading issued by WWO, payment confirmation to carrier).

WNL-0023 – WNL-0027

Carrier booking documentation – Cargoland USSAV2348173 (booking request, booking confirmation, shipping instructions, master bill of lading issued by WWO, payment confirmation to carrier).

WNL-0028 – WNL-0032

Carrier booking documentation – Cargoland USSAV2351444 (booking request, booking confirmation, shipping instructions, master bill of lading issued by WWO, payment confirmation to carrier).

WNL-0033

Executed Service Contract NASA23-003 between Complainant and Respondent.

WNL-0034

Wallenius Wilhelmsen letter acknowledging that the cargo was discharged and seized by Peruvian Customs in Pisco, Peru due to manifest transmission issues.

WNL-0035 – WNL-0044

Communications and updates from WWL regarding the incident and commercial resolution discussions.

WNL-0045 – WNL-0046

Statements regarding internal records and insurance documentation.

WNL-0047 – WNL-0055

“Customer invoices, payments, and financial records relating to transportation services for the seized boats.”

WNL-0056 – WNL-0057

Email correspondence with Andy of Miami and Cargoland.

WNL-0058 – WNL-0060

Photographs and video evidence of shipped boats.

WNL-0061 – WNL-0063

Email communications with InterAmericanCargo and senior management.

WNL-0064 – WNL-0070

Attachments referenced in previously produced emails.

WNL-0071 – WNL-0073

Notice of Demand communications and WNL written response to counsel.

Appendix B – Index of Respondent Production (WWO-0001 – WWO-0510)

WWO-0001 – WWO-0133

Carrier booking confirmations and shipment documentation relating to bookings USSAV2348017, USSAV2348173, and USSAV2351444.

WWO-0134 – WWO-0146

Internal communications between Wallenius Wilhelmsen personnel and agents acknowledging manifest transmission errors and discussing the omission of Bills of Lading US2387246, US2387773, and US2387995, which resulted in the seizure of cargo in Pisco, Peru.

WWO-0147 – WWO-0373

Correspondence and documentation involving Peruvian Customs authorities regarding seizure of cargo discharged in Pisco, Peru.

WWO-0374

Internal communication linking booking numbers with the relevant bills of lading.

WWO-0375

Carrier notice regarding discontinuation of service to Chile.

WWO-0376 – WWO-0510

Email correspondence between Worldwide Nexus Logistics and Wallenius Wilhelmsen regarding claims discussions and the status of the seized cargo.

Appendix C – Deposition Exhibit Index

Exhibit 1

Notice of Deposition – Jean Lopez

Exhibit 2

Booking Confirmation USSAV2348017

Exhibit 3

Booking Confirmation USSAV2348173

Exhibit 4

Booking Confirmation USSAV2351444

Exhibit 5

Sea Waybill US2387246

Exhibit 6

Sea Waybill US2387773

Exhibit 7

Sea Waybill US2387995

Exhibit 8

Wallenius Wilhelmsen Terms and Conditions (January 2021)

Exhibit 9

Claims communications between WNL and WWL

Exhibit 10

Complaint filed before the Federal Maritime Commission

Exhibit 11

Respondent Responses to Complainant Interrogatories

Exhibit 12

Original Vessel Manifest transmitted for vessel MORNING LADY EC311

Exhibit 13

Corrected Vessel Manifest reflecting previously omitted Bills of Lading US2387246, US2387773, and US2387995

Exhibit 14

Commercial Invoice – Boat US2387246

Exhibit 15

Payment confirmation – Boat US2387246

Exhibit 16

Commercial Invoice – Boat US2387773

Exhibit 17

Cost documentation – Boat US2387773

Exhibit 18

Commercial Invoice – Boat US2387995

Exhibit 19

Cost documentation – Boat US2387995

Respectfully submitted,

/s/ Jean Lopez

Jean Lopez

President

Worldwide Nexus Logistics, LLC